

Select Board Committee on Policing Reforms Meeting Minutes  
March 29, 2021 | 4:00 PM

---

*Meeting held remotely on Zoom due to COVID-19; hosted by Town Staff Devon Fields, meeting chaired by Bernard Greene.*

**Members Present:**

Bernard Greene  
Elizabeth Childs  
Paul Yee  
Michael Zoorob  
Ronald Wilkinson  
Marty Rosenthal  
Robert Sable  
Casey Hatchett

**Members/Non-Voting Members Absent:**

Dwain Tyndal  
Sassan Zelhka  
Raj Dhanda

**Non-Voting Members Present:**

Caitlin Starr, Office of Diversity, Inclusion, and Community Relations  
Janice Kahn, Advisory Committee Representative  
Michael Keaveny, Police Union President  
Dan O'Leary, Former Police Chief and Committee Liaison  
Mel Kleckner, Town Administrator

The meeting minutes from March 1 and March 10, 2021 were unanimously approved.

**Final Report Discussion**

Bernard Greene asks the Committee to vote on the final version of their report. He asks that any additional comments be made as addendums as opposed to continuing to further edit the report. Ronald Wilkinson asks about the additional work that is being done and how that factors into the report. The Chair confirms that it will be addressed in the presentation to the Select Board.

Marty Rosenthal addresses concern regarding the language pertaining to the police union member on the PCAC. Bernard Greene says this will be addressed in the next item. He also reiterates that a couple of members will have separate statements that are added on as additional documents.

All in favor of approving the Committee on Policing Reforms Final Report:

Bob Sable: yes

Michael Zoorob: yes

Casey Hatchett: yes

Marty Rosenthal: yes

Elizabeth Childs: yes

Paul Yee: yes

Ronald Wilkinson: yes

Chair: yes

### **Recommendations to the Select Board**

Bernard Greene goes over the remaining recommendations that the committee will vote on to propose to the Select Board. He highlights that they have to do with the School Resource Officer and BHA Walk and Talk Program. The primary recommendation is that the Select Board does not make any changes to these programs.

They go on to clarify that they would like subcommittee recommendations to be taken into consideration as there were minor changes to both programs mostly surrounding community engagement.

Michael Zoorob suggests the following language:

Voted to maintain the Walk and Talk and SRO program as modified by the Reform Committee recommendations pending further input by the School Committee and Brookline Housing Authority Commissioners.

Ronald Wilkinson shares his proposed language for the votes as follows:

There are several potential options for the future of the School Resource Officer and Walk and Talk programs including the following:

- Making no changes
- Making limited changes such as those described by the Community Outreach, Youth and Nontraditional Roles Subcommittee

- Abolishing the current program with no replacements
- Planned gradual transitions from the current programs to programs based on new models

To understand the ramifications of each option more fully, we recommend that the Select Board vote to solicit the input of the following stakeholders:

- The School Committee for the SRO program and the Housing Authority Board of Directors for the Walk and Talk program
- Fully representative sets of students, teachers, and administrators for the SRO program and of public housing residents for the Walk and Talk program

Casey Hatchett expresses confusion about why all of these additional options are included when the subcommittee recommendations have been out and clear for over a month. She agrees with Bernard's language of the additional language regarding input from the School Committee and BHA Board of Directors.

Elizabeth Childs says that all residents of the BHA were reached out to regarding the Walk and Talk program and there was a high response rate. Bernard Greene says they recognize they didn't hear from a diverse group of residents and Elizabeth Childs acknowledges that but she would like the vote to acknowledge that outreach has already taken place.

Michael Zoorob proposes the following language for the vote:

Pending further input from appropriate stakeholders, vote as Police Commissioners to maintain the SRO and Walk and Talk Programs as modified by the recommendations from the Community Outreach, Youth, and Non Traditional Roles Subcommittee.

Marty Rosenthal adds that he believes the PCAC should be involved in future discussions of these programs. Michael Zoorob doesn't believe that language needs to be included in the vote. Paul Yee acknowledges that the Committee should stay with this language and points out that there will be a legal requirement with the MOU, especially regarding the SRO vote, so the Select Board will need to take some action unless they want the situation to default as it is.

Robert Sable suggests an addition to Michael's proposed vote to include the phrase 'including School Committee and BHA Board members' after the word stakeholders.

Pending further input from appropriate stakeholders, including the School Committee and BHA Commissioners, vote as Police Commissioners to maintain the SRO and Walk and Talk Programs as modified by the recommendations from the Community Outreach, Youth, and Non Traditional Roles Subcommittee.

Marty Rosenthal wants to spell out the stakeholders - teachers, students, parents, etc. Michael Zoorob believes this complicates the vote. Bernard and Robert Sable make slight amendments to include the stakeholders.

The final vote:

Pending further input from appropriate stakeholders, vote as Police Commissioners to maintain the SRO and Walk and Talk Programs as modified by the recommendations from the Community Outreach, Youth, and Non Traditional Roles Subcommittee.

Stakeholders shall include, without limitation, students, teachers, administrators, parents, and the School Committee with regards to the SRO program; and BHA residents, staff, and Commissioners with regards to the Walk and Talk Program

Marty Rosenthal: yes

Michael Zoorob: yes

Ronald Wilkinson: yes

Casey Hatchett: yes

Elizabeth Childs: yes

Robert Sable: yes

Paul Yee: yes

Chair: yes

Marty Rosenthal suggests adding ‘and to the extent available, the PCAC’. He believes they will be established before this debate is concluded and wants them to have input. Casey Hatchett doesn’t want that language to hold up the process. Ronald Wilkinson says he is in favor of keeping it simple. Michael Zoorob believes the PCAC is implicit in this process and is also one of the actual recommendations so this language is unnecessary.

Bernard Greene calls the vote on Marty Rosenthal’s proposed additional language: ‘and to the extent available, the PCAC’ at the conclusion of the stakeholder list for the previous vote.

Michael Zoorob: no

Paul Yee: no

Robert Sable: yes

Ronald Wilkinson: no

Elizabeth Childs: yes

Casey Hatchet: no

Marty Rosenthal: yes

Chair: no

3 yes

5 no

The motion does not pass.

Bernard Greene brings up a conversation he had with Raul Fernandez, the Chair of the Task Force to Reimagine Policing in Brookline. They discussed a few changes that the Task Force would like to see to the Reforms Committee's Police Commissioner Advisory Council (PCAC) proposal.

- The Task Force would like to call non-voting members liaisons - the Office of Diversity, Police Department, HR, and Town Counsel
- The Task Force wants to see the liaison from the Police Department as the Chief or the Superintendent - Bernard Greene said Dan O'Leary agrees this is a good approach
- They agree with the Police Union change that the Reforms Committee made - PCAC shall meet with the rank and file or police union members on a regular basis

Marty Rosenthal doesn't agree with these first two changes. Michael Zoorob says these changes were made and voted on last week so having further discussion now is not relevant. Dan O'Leary says the Police Department needs to prioritize who needs to be at the table if there is a group studying the department and he believes it should be the head of the department. Ann Braga suggests that the title be 'ex-officio' so that it lives with the office or the leadership of a department. Michael Keaveney points out that current Department leadership has not been involved with either committee and that without the union's involvement there may have been no police perspective at the table. He says this is why the language should be specific regarding roles. Elizabeth Childs says that the naming/wording isn't as important as the function of the roles.

Bernard Greene revisits the rest of the Task Force changes:

- The Task Force would like to remove the requirement that one member is a lawyer
- The Task Force would like to see the investigation of all complaints outside of the Police Department. A recommendation could be that the internal affairs officer is not in the union. Bernard mentions that this issue cannot be solved in this proposal.
- The Task Force would like introductory language regarding the separation of powers between the PCAC and the Select Board.

Bernard Greene proposes to vote to come in line with the Task Force on the PCAC proposal on the following items:

- Calling non-voting members liaisons - the Office of Diversity, Police Department, HR, and Town Counsel
- Have the liaison from the Police Department as the Chief or the Superintendent position specifically
- Remove the requirement that one member is a lawyer

Casey Hatchett: yes

Robert Sable: yes

Ronald Wilkinson: yes

Elizabeth Childs: yes

Paul Yee: yes

Marty Rosenthal: yes

Michael Zoorob: yes

Chair: yes

Bernard Greene moves on to discuss other recommendations including directing the Select Board to instruct the Town Administrator to look into the Town of Brookline leaving the civil service. Marty Rosenthal asks why this seems like a directive as opposed to a study. Elizabeth Childs reminds the group that her subcommittee recommended the Town wait until the State report comes out to review. She is confirming the intent is for the Town Administrator to study this process. Paul Yee said that the recommendation is to wait and assess, he says the Town Administrator should be the lead on this initiative. Marty Rosenthal says 'begin the process and the discussions' feels contradictory. The process can't begin until the discussions are had.

To be voted, the Select Board directs the Town Administrator to study the merits of the Civil Service Commission including consideration of the pros and cons and based on those considerations initiate discussions with the unions.

Casey Hatchett: yes

Ronald Wilkinson: yes

Robert Sable: yes

Marty Rosenthal: yes

Elizabeth Childs: yes

Paul Yee: yes

Michael Zoorob: yes

Chair: yes

To be voted, the Select Board directs the Town Administrator to fill and back fill top ranking positions within the Brookline Police Department.

Paul Yee: yes

Michael Zoorob: yes

Casey Hatchett: yes

Bob Sable: Yes

Elizabeth Childs: yes

Marty Rosenthal: yes

Ronald Wilkinson: yes

Chair: yes

Marty Rosenthal asks if this will prompt the necessity to ask Acting Chief Morgan to take on the Police Chief role permanently.

Voted that that the Select Board direct the Town Administrator to include, in his FY 22 or FY 23 budget, funding for a benchmark study to better understand identify disparities in vehicle stops as directed by the PCAC:

Elizabeth Childs: yes

Marty Rosenthal: yes

Ronald Wilkinson: yes

Casey Hatchett: yes

Robert Sable: yes

Michael Zoorob: yes

Paul Yee: yes

Chair: yes

Voted, that the Select Board direct the Town Administrator to establish a working group of experts from the committee to identify and negotiate with local health providers who are appropriately sized with the 24/7 mental health/substance use walk in clinic and crisis beds to create a wrap around patient services for patients suffering from chronic mental illness and substance use disorders.

Michael Zoorob: yes

Paul Yee: yes

Robert Sable: yes

Ronald Wilkinson: yes

Eliabeth Childs: yes

Marty Rosenthal: yes

Casey Hatchett: yes

Chair: yes

Elizabeth Childs reinforces that the goal is to create a private/public partnership to increase the ground services on mental health providers in Brookline and for Brookline residents with aftercare follow up resources. Marty Rosenthal asks how this interacts with the CAHOOTS program and recommendation. Elizabeth Childs confirms that the vote the Reforms Committee took the prior week was open ended so it could include CAHOOTS or not.

Vote to direct the Town Administrator to terminate payments from BHA to the BPD and reimburse any FY2021 payments.

Robert Sable: yes

Casey Hatchett: yes

Ronald Wilkinson: yes

Marty Rosenthal: abstain

Elizabeth Childs: yes

Paul Yee: yes

Chair: yes

The motion passes 7 to 1.

The meeting adjourns at 5:35 p.m.